

File No.: EXP202305975

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party), and upon noticing indications of a possible breach of the regulations within the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202105944.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to the responsible party or the Data Protection Officer designated, requesting them to send this Agency the information and documentation indicated.

The information request specified the chronology of the calls received by the complainant, as well as the calling lines. Specifically, it noted the call received on line ***PHONE.1 on November 3, 2021, from the calling line ***PHONE.2.

SECOND: On February 10, 2022, and with entry numbers O00007128e2200005920 and O00007128e2200005922, the response of the complained party regarding the information request was registered with this Agency. Thus, the complained party indicated that, after conducting the appropriate checks, it had verified that the complainant's telephone line, ***PHONE.1, is listed in the official Robinson list of ADigital and in Vodafone's internal Robinson list since May 15, 2018. Therefore, it asserts that the complainant's right to object was processed correctly, as they were included in its internal Robinson list. Furthermore, the complained party stated that it had verified that the calling numbers indicated in the information request do not appear in its database of numbers associated with the collaborators who make solicitation calls on its behalf. Therefore, it concludes that it does not seem possible to relate the receipt of the calls indicated by the complainant in their complaint to the complained party.

THIRD: On February 11, 2022, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LPDGDD, upon appreciating possible rational indications of a violation of the regulations within the competencies of the Spanish Agency for Data Protection.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 57.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

An information request was made to the entity BNT BUSINESS, S.L., with NIF B93238533, regarding the ownership of the number ***PHONE.2, on March 9, 2022, with entry registration number O00007128e2200010980. This entity states the following:

“Upon consulting our Database, a call was made from the number ***PHONE.2 to ***PHONE.1 on November 3, 2021.

BNT Business is a telecommunications company with a valid CNMC License that authorizes it to resell the Vocal Nómada service, both in Direct Access and Indirect Access. In this case, the call was not made by BNT Business, but by one of our clients, INCALL PROYECT S.L., which has the originating number of the call: ***PHONE.2 under contract. (...) INCALL PROYECT S.L. has been granted the use of the number ***PHONE.2 under a service contract signed between BNT Business S.L. and

INCALL PROYECT S.L. dated October 27, 2021.”

An information request was made to the entity INCALL PROYECT S.L., with NIF B83177113, regarding the commercial calls for promotional purposes to the destination number ***PHONE.1 made from the originating number ***PHONE.2 on November 3, 2021, on March 18, 2022, with entry registration number REGAGE22e00007944631. This entity states that:

“FIRST POINT: The purpose of the calls is to schedule an in-person appointment with potential clients for the formalization of the corresponding contract for the telephony services distributed by our company as an authorized agent of Vodafone, which, in any case, will be carried out in person. Attached as Annex I is a copy of the SERVICE PROVISION CONTRACT FOR IN-PERSON CHANNEL along with all its annexes. It is noteworthy that the formalization of the contract was carried out electronically, which is why the attached copy does not bear the signatures of the responsible parties from Vodafone.

SECOND POINT: Our files do not contain data regarding the holders of the indicated lines since companies that may be interested in the microenterprise services offered by Vodafone are manually located.

In the case at hand in this file, it was verified that the telephone number corresponded to a professional office. In fact, this number is advertised both on the Google Business profile of the office and on its own website, as shown in the screenshots attached in Annex II.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/11

The only data we have in our system regarding the phone number is the time of the call and its duration, noting that only one call was made on November 3, 2021, with a duration of 16 seconds. After that single call, no further contact has been made.

POINT THREE: As described above, the data is not obtained from any database nor provided by external sources. Instead, it is manually compiled by looking at companies likely to contract the solutions that Vodafone offers for micro-enterprises and verifying that the line is not included in the advertising exclusion files and that they are currently not Vodafone customers, and from there, the call is made to arrange a commercial visit.

POINT FOUR: Contracts formalized with the technology provider that makes the calls are attached as Annex III. It is noteworthy that this provider is mandated by Vodafone, as evidenced in POINT SIX of this document.

POINT FIVE: Regarding the parameters of the campaign, it should be noted that there are no criteria other than, obviously, that they are not Vodafone customers. Aside from this criterion, we have never been given any customer profiling by Vodafone, nor has any classification been made by our entity.

POINT SIX: Vodafone requires all collaborators using telemarketing services to sign a contract with the company BNT Business, SL (hereinafter BNT), which is the supplier of VoIP solutions and filtering through the advertising exclusion files. Without this contract, the telephone company does not authorize the subcontracting of telemarketing treatments. Copies of the emails detailing the initiation of this procedure are provided as Annex IV; on one hand, you will find the email from Vodafone detailing the process, and subsequently, the email from BNT confirming that the services have been correctly activated.

On the other hand, Vodafone itself established an additional mechanism to the one described above for consulting numbers to which calls should not be made, called “DrTool.” This tool requires every collaborator to upload in advance the list of potential calls to be made to exclude those numbers that the company has noted in an advertising exclusion list. Once the information has been consulted, a list is returned with the accepted numbers for making the call through the VoIP system provided by BNT. Through this procedure, Vodafone ensures that the calls made are lawful and are not made to any number that is on advertising exclusion lists or to numbers that have directly informed Vodafone that they do not wish to receive further advertising.

FIFTH: On September 16, 2022, a report of prior investigative actions was made, in which the

conclusions state that the number ***PHONE.2 is assigned to the Spanish entity INCALL PROJECT S.L., a collaborator of VODAFONE ESPAÑA, S.A.U.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/11

SIXTH: VODAFONE ESPAÑA, S.A.U. is part of the business group VODAFONE GROUP PLC, which has an annual turnover of 45.706 billion euros, according to the financial results published by the entity itself in its annual report for the fiscal year 2023.

SEVENTH: On June 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

EIGHTH: The aforementioned initiation agreement was received by the respondent on June 28, 2023, as evidenced by the acknowledgment of receipt in the file.

NINTH: On July 4 and 10, 2023, with entry registration numbers REGAGE23e00044348172 and REGAGE23e00046292726, the respondent requested an extension of the initially granted deadline for the maximum time allowed by current legislation for the submission of allegations and to provide the necessary evidence, as well as a copy of the complete file of the present sanctioning procedure. This Agency agreed to extend the deadline for submitting allegations by a maximum of five days, calculated from the day following the end of the first deadline for allegations.

On July 10, 2023, a letter was sent by courier communicating the extension of the deadline along with an encrypted physical support containing the requested copy of the file. On the same date, a document was sent independently, via the Notific@ platform, providing the key to access the documentation included in that physical support. The communication of the deadline extension with the copy of the file was delivered on July 11, 2023, and the letter with the key allowing access to it was delivered on July 10, 2023, as evidenced by the acknowledgments of receipt in the file.

TENTH: On July 19, 2023, with entry registration number REGAGE23e00049237810, the respondent submitted a written statement of allegations regarding the initiation agreement in which it states, on one hand, that the facts refer to a single interested party (the complainant) who, at the time of the events, is not a customer of Vodafone. On the other hand, the Initiation Agreement is based solely on one of the calls for which information was requested from the respondent in the information request with reference number EXP202105944, with the Agency having found no evidence of a link between the other calls and the respondent or its collaborators.

The respondent adds that this Agency has accepted the assertions and evidence provided by INCALL PROYECT S.L., without requesting additional information, directly opening a sanctioning procedure.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
5/11

The responding party indicates that INCALL PROYECT S.L. provides the contract that was in force with Vodafone on the date the call was made, November 3, 2021. In said contract, it continues, in its second clause, the object of the contract, the possibility of carrying out telemarketing or teleappointment activities by INCALL PROYECT, S.L. is expressly prohibited without first fulfilling a series of requirements, among which is, among others, the signing of a teleappointment addendum with the responding party. In this addendum, the responding party defines the obligations that must be fulfilled by those agencies authorized to carry out the activity of teleappointment scheduling, such as, for example, the obligation to route all outgoing calls through the VoIP operator and thus avoid calls to phones that were included in the Robinson list of ADigital or the internal Robinson list of Vodafone, as

is the case with the claimant's phone.

The responding party indicates that INCALL PROYECT, S.L. provides a snippet of an email exchanged between an unidentified employee of Vodafone and some representative, also unidentified, of INCALL PROYECT, S.L. dated March 14, 2022, a date subsequent to the call of November 3, 2021, which is the subject of these allegations. In said email, INCALL PROYECT, S.L. is informed that the approval of the teleappointment activity by INCALL PROYECT S.L. and the signing of the corresponding addendum is pending approval by Vodafone. From this, the responding party understands that, prior to that email, INCALL PROYECT, S.L. had neither authorized nor signed the teleappointment addendum, which is why it is not included in its allegations, and Vodafone confirms that there is no authorization from Vodafone to INCALL PROYECT, S.L. to carry out teleappointment scheduling nor a signed addendum. Therefore, the responding party concludes that it has been unable to identify the calling number assigned to INCALL PROYECT, S.L. as one of the numbers executing commercial campaigns in its name, since, not being authorized to carry out the teleappointment activity, INCALL PROYECT, S.L., despite claiming so in its allegations, was not routed.

The responding party asserts that INCALL PROYECT, S.L., when making the call on November 3, 2021, to the claimant, acted on its own without complying with the guidelines set by it, violated the provisions of the contract between the responding party and INCALL PROYECT, S.L., and therefore acted, following what is indicated in Article 28.10 of the GDPR, as the data controller regarding the call made on its own account and risk, as it was not part of any activity or process commissioned or authorized by the responding party as the data controller.

The responding party explains that INCALL PROYECT, S.L., not being authorized to carry out teleappointment activities, was not routed by the VoIP operator's system. As a result of the situation presented, the responding party could not know that the number ***TELÉFONO.2 was being used by INCALL PROYECT, S.L. to carry out commercial campaigns in the name of the responding party, as it was not supposed to carry out any telephone activity of any kind as stated in the contract.

Furthermore, the responding party recalls that INCALL PROYECT, S.L. may have assigned lines from BNT BUSINESS, S.L. that it uses for other services unrelated to

6/11

In this case, it is stated that the number ***TELEPHONE.2, in November 2021, was not assigned to the Vodafone project but was either a free number or assigned to another project.

In this regard, the responding party claims that it requested BNT BUSINESS, S.L. to confirm whether the number ***TELEPHONE.2 was assigned within the Vodafone project for INCALL PROYECT S.L., with BNT BUSINESS, S.L. confirming that in November 2021, said number was not assigned to the call routing of the responding party through which the advertising exclusion lists are filtered, but was enabled for other IP trunks that INCALL PROYECT, S.L. used in other campaigns, all after informing INCALL PROYECT, S.L. that this trunk could not be used to promote services of the responding party. Additionally, an email sent by the person in charge of BNT BUSINESS, S.L. is provided, indicating that the line ***TELEPHONE.2 was enabled for the Vodafone project on October 27, 2021. This was due to INCALL PROYECT S.L. requesting BNT BUSINESS, S.L., in violation of the guidelines of the responding party, to assign numbers for the Vodafone project.

However, when the responding party became aware of this during monitoring activities on October 28, 2021, just one day after the assignment and before the line had any traffic, an email was sent to BNT BUSINESS, S.L., which is provided, informing that INCALL PROYECT S.L. was not authorized to make calls. As a result, on the same day, October 28, the number was deactivated, and INCALL PROYECT S.L. was informed that the number ***TELEPHONE.2 could not be used for the responding party's project since it was not authorized to make telemarketing calls, all prior to the call that gives rise to this Initiation Agreement.

Thus, the responding party concludes that when it informs this Agency that it does not recognize the number ***TELEPHONE.2 as its own or that of its collaborators, it provided the correct information, not failing in its duty to provide such information.

The responding party insists that if INCALL PROYECT, S.L. had followed its guidelines and the obligations set forth in the contract, requesting authorization and signing the telemarketing addendum, without bypassing all the controls implemented by it, it would have had to sign the telemarketing

addendum to provide this service, which would have routed the calls, and the responding party could have identified the number ***TELEPHONE.2 as linked to the activity of an agency, preventing the routing system from executing the call to the claimant's number ***TELEPHONE.1, since through the routing system, numbers that were in ADigital and in the internal Robinson of the responding party, where the claimant's number was listed, are excluded.

The responding party adds that, without prejudice to all the previous measures, it also carried out continuous monitoring of the activity of its agencies, through which it was verified that on October 27, 2021, BNT BUSINESS, S.L. activated a line for INCALL PROYECT, S.L. when it was not authorized to do so, which is why it requested on October 28, 2021, that it be deactivated. As a consequence of all this.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/11

Previously, on September 16, 2021, INCALL PROYECT, S.L. was warned, and on November 11, 2021, the contract was terminated as it was evidenced that it continued to fail to comply with the guidelines of the same. The warning and the termination are provided.

The responding party asserts that it has demonstrated its diligence not only by applying contractual and procedural controls through the routing system but also by monitoring that the agencies complied with these obligations, auditing, warning, and terminating those agencies that have not done so. It also claims that it exercises close control over its collaborators and the calls they make, having implemented specific measures for this purpose, and these measures were communicated to this Agency following the file PS/00050/2020.

The responding party denies the assertion of INCALL PROYECT, S.L. that it made the call providing the service regulated in the contract of the In-Person Channel, since this contract prohibits telemarketing and tele-scheduling to INCALL PROYECT, S.L. As evidence, it provides a screenshot of the section of the allegations where it reads:

“FIRST POINT: The purpose of the calls is to schedule an in-person appointment with potential Clients for the formalization of the corresponding contract for the telephony services distributed by our company as an authorized agent of Vodafone, which, in any case, will be carried out in person.” (The responding party highlights in this paragraph the text “schedule an in-person appointment” and “authorized agent of Vodafone”).

The responding party also points out that it is not true that the lack of signature on the copy of the contract provided by INCALL PROYECT S.L. is due to the formalization of the contract being carried out electronically, since any signature or formalization of the contract, whether electronically or by any other means, implies the signature of the representatives of the signing companies and evidence of the same is kept. The reason why INCALL PROYECT, S.L. does not provide the signed addendum is that it does not exist.

Subsidiarily, and in the event that this Agency understands that there has been an infringement and a sanction must be imposed, the responding party indicates that the mitigating circumstances of the case should be taken into account.

Regarding Article 83.2 b) of the GDPR, the responding party argues that, in the present case, the lack of intent or negligence should be taken as a mitigating factor, as it provided correct information in all cases and could not determine which entity was using that numbering at that time since it does not belong to the responding party nor to the trunks assigned by BNT BUSINESS, S.L. for its activity and, in any case, was not assigned to any of its collaborators who had the activity of authorized telemarketing or tele-scheduling.

Regarding Article 83.2 d) of the GDPR, the responding party refers to what has been stated concerning the degree of diligence employed by Vodafone in implementing measures to regulate and monitor the telemarketing and tele-scheduling activity of its collaborators.

C/ Jorge Juan, 6
www.aepd.es

For all the above reasons, the respondent requests that this Agency agree to the dismissal of the file with the consequent archiving of the proceedings, due to the absence of the alleged infringement, and that, subsidiarily, in the event that a sanction is imposed, it be set at the minimum amount in light of the mitigating circumstances indicated.

ELEVENTH: On September 13, 2023, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection agree to archive the present sanctioning procedure. Furthermore, the procedure was made known so that within ten days the respondent could present any arguments they deemed appropriate in their defense and submit any documents and information they considered pertinent, in accordance with Article 89.2 of the LPACAP.

TWELFTH: The proposal for resolution, which was registered on September 13, 2023, with registration number REGAGE23s00061234196, was collected by the responsible party on September 20, 2023, as evidenced by the acknowledgment of receipt in the file.

After the ten business days granted in the proposal for resolution for the submission of allegations had elapsed, the respondent did not submit any allegations.

In view of all that has been acted upon by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven:

PROVEN FACTS

FIRST: On February 10, 2022, the respondent indicated that they had verified that the calling numbers indicated in the information request made in the context of file number EXP202105944, among which is the calling line ***PHONE.2, do not appear in their database of numbers associated with the collaborators who make solicitation calls on their behalf.

SECOND: On March 18, 2022, INCALL PROYECT S.L. stated that their system shows that a call was made on November 3, 2021, to the destination number ***PHONE.1 from the origin number ***PHONE.2 and that the reason was "to schedule an in-person appointment with potential clients for the formalization of the corresponding contract for the telephony services distributed by our company as an authorized agent of Vodafone, which, in any case, will be carried out in person."

THIRD: The notification of the agreement to initiate the present sanctioning procedure was received by the respondent on June 28, 2023.

FOURTH: The respondent has submitted allegations to the agreement to initiate this sanctioning procedure as described in the tenth antecedent.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

9/11

FIFTH: From the evidence available, it is established that INCALL PROYECT S.L. did not meet the contractual requirements and therefore was not authorized to make telemarketing calls for Vodafone at the time the call in question was made, as well as that the calling number was disconnected from their control systems.

SIXTH: The notification of the proposal for resolution of the present sanctioning procedure was received by the respondent on September 20, 2023.

SEVENTH: The respondent has not submitted allegations to the proposal for resolution of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and

guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the respondent, the following should be noted.

After reviewing the allegations and documents mentioned in the tenth antecedent and having verified that the copy of the contract provided by INCALL PROYECT, S.L. lacks the signatures of the responsible parties of the respondent, it is concluded that in accordance with the evidence available, the non-existence of the fact constituting the infringement for which the present procedure was initiated is deduced: violation of Article 58.1.e) of the GDPR, an infringement classified in Article 83.5.e) of the GDPR, which considers as such: "failure to provide access in violation of Article 58, paragraph 1."

III

Archiving

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/11

Article 89 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, provides as follows:

"1. The instructing body shall resolve the termination of the procedure, with the filing of the proceedings, without the need for the formulation of a resolution proposal, when it is evident during the instruction of the procedure that any of the following circumstances exist:

- a) The non-existence of the facts that could constitute the infringement.
- b) When the facts are not proven.
- c) When the proven facts do not manifestly constitute an administrative infringement.
- d) When there is no person or persons responsible identified or they appear to be exempt from liability.
- e) When it is concluded, at any time, that the infringement has expired."

2. In the case of sanctioning procedures, once the instruction of the procedure is concluded, the instructing body shall formulate a resolution proposal that must be notified to the interested parties. The resolution proposal must indicate the disclosure of the procedure and the deadline for making allegations and presenting the documents and information deemed pertinent."

Consequently, it is appropriate to agree to file the present sanctioning procedure.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the sanctioning procedure of file number EXP202305975.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U., with NIF A80907397.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses

their intention to file an administrative contentious appeal.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

11/11

If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

938-250923

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es